CITY OF WALNUT CREEK

Agenda Item Number 5c

Agenda Report

Date: May 19, 2026

To: City Council

From: City Manager's Office

Subject: Consideration of a Resolution Submitting a Measure to the Voters of Walnut Creek for the November 3, 2026 General Municipal Election Transitioning the City Treasurer Position from Elected to Appointed, Including Specifying Procedures and Processes Related to the Ballot Arguments

---

Statement of Issue

The office of City Treasurer is currently an elected position as established by the Walnut Creek Municipal Code and authorized under California Government Code. The City Council is asked to consider a resolution submitting a measure to the voters of Walnut Creek for the November 3, 2026 general municipal election transitioning the City Treasurer position from an elected to an appointed office and specifying procedures and processes related to the ballot arguments. The election of a City Treasurer to a new four-year term is also scheduled to appear on the same ballot.

Discussion

California Government Code Section 36501 provides that one of the officers of a general law city is the City Treasurer. This office cannot be abolished. However, Government Code Section 36508 authorizes the City Council to submit a measure to the voters to transition the office from elected to appointed.

The office of City Treasurer of Walnut Creek is currently an elected position as established by the Walnut Creek Municipal Code and authorized under the California Government Code (Attachment 2). The only qualifying requirements for the elected position are that a candidate must be a registered voter and reside in the City, California Government Code Section 36502(a). The City Treasurer is responsible for oversight of the City's financial assets, including cash management, investments, and financial reporting.

As municipal finance has become increasingly regulated, many cities have transitioned to an appointed City Treasurer model to ensure the position is filled based on professional qualifications, experience, and technical expertise in public finance and investment management. In addition, due to technology advancements over several years, the work is considerably more streamlined as compared to the past and existing staff could absorb the work if the position were to become appointed.

The City Treasurer position is scheduled to be on the ballot for the upcoming November 3, 2026 general municipal election. To comply with state law and ensure a clear transition, the proposed measure to transition the office from elected to appointed would appear on the same ballot. The decision to place this issue on the ballot must be made by Council by August 7, 2026.

Process

To change an elected office to an appointed one, the City must follow the process outlined in California Government Code §36508-36510 (Attachment 3). This requires:

1. **Council Action**: The City Council must vote on a resolution to submit a measure to the voters for the November 3, 2026 general municipal election transitioning the City Treasurer position from an elected to an appointed office. Pursuant to California Elections Code Section 9282, when a measure is placed on the ballot by a legislative body, that body may authorize members of the legislative body to submit a written argument in favor of the measure and a rebuttal argument, if applicable. The resolution would specify procedures related to submission of ballot arguments:

    - Authorize Mayor Kevin Wilk and Mayor Pro Tem Matt Francois to submit a written argument in favor of the proposed measure, not to exceed three hundred (300) words, on behalf of the City Council, and recommend Councilmembers and/or others (up to five) to sign the supporting argument for publication; and
    - In the event that an argument is filed against the measure, authorize Mayor Kevin Wilk and Mayor Pro Tem Matt Francois to submit a rebuttal argument on behalf of the City Council, not to exceed two hundred and fifty (250) words. The rebuttal may also be signed by Councilmembers and/or others (up to five), which may be different from those who signed the primary argument.

    The resolution calling for the question of whether the City Treasurer shall be appointed by the City Council must be adopted at least 88 days prior to the election pursuant to Elections Code §9222, which for the November 3, 2026 election would be August 7, 2026. The last scheduled City Council meeting before the 88-day deadline is July 21, 2026.

No later than August 7, 2026	City Council to pass resolution, formally placing the measure on the November 2026 ballot; this action should include direction regarding the authority to submit a ballot argument in support of the measure and a potential rebuttal argument.
No later than August 7, 2026	Deadline to submit ballot measure to Contra Costa County Board of Supervisors.
August 19, 2026	City Clerk to file primary arguments with the Contra Costa County Elections Department through submission to the City Clerk.
August 19, 2026	City Attorney to prepare and submit an impartial analysis, if directed by the City Council.
August 24, 2026	Rebuttal arguments must be filed with the Contra Costa County Elections Department through submission to the City Clerk (only for opposing arguments filed).
November 3, 2026	Election Day

2. **Ballot Question:** The phrasing of the measure is strictly governed by Government Code §36509. The proposed ballot question shall read:

   "Shall the office of City Treasurer be appointive? YES / NO"

3. **Voter Approval:** The ballot measure must be passed by a majority of Walnut Creek voters during a municipal election, Government Code § 36510.

4. **Timing:** If the measure passes concurrently with the election of the City Treasurer:

   - The candidate elected at the November 3, 2026 election would serve the full term.

   - At the conclusion of that term (2030, or earlier, if the incumbent resigns or otherwise vacates their office), the office of City Treasurer would transition to an appointed position.

   - Pursuant to Government Code § 36510, future City Treasurers would be appointed by the City Council. State law further provides that once the position is made appointive, the City Council may enact an ordinance vesting in the City Manager its authority to appoint the City Treasurer, and establishing the requirements and prerequisites for appointing a City Treasurer (Government Code § 36510, 34856). Walnut Creek Municipal Code Section 2-6.405(c) already

authorizes the City Manager to appoint the City Treasurer in the event that the office is made appointive. Thus, the City Manager would be authorized to appoint future City Treasurers. The appointed City Treasurer is not required to be either a resident or elector of the City (Gov. Code § 36510).

If the measure is not approved, the City Treasurer position will remain elected and the City Council may not submit the question to the voters again for at least eleven months (Government Code §36508).

Walnut Creek City Treasurer History

Ronald Cassano is the current elected City Treasurer. He was initially appointed in 1996 to replace M. Huff. Cassano was most recently re-elected in November 2022 to a term ending in 2026.

On February 15, 1956, the City Council introduced Ordinance 292 calling for a special election placing a measure for the appointment of offices – Shall the offices of City Clerk and City Treasurer be appointive? Ballot Measure 2 was voted upon at an April 10, 1956 special election and failed (yes 340; no 941). A second measure to change the elected City Treasurer office to an appointed office was made at the March 26, 1996 election via Ballot Measure C. Ballot Measure C failed (7,925 yes; 11,488 no). In 2004, Ballot Measure X for an appointive City Clerk passed (17,255 yes; 14,109 no).

In Contra Costa County, 12 cities (63%) have appointed City Treasurers. The chart below depicts the cities in Contra Costa County and whether they have an elected or appointed City Treasurer.

City	Elected City Treasurer	Appointed City Treasurer
Antioch	X	
Brentwood		X
Clayton		X
Concord	X	
Danville		X
El Cerrito		X
Hercules		X
Lafayette		X
Martinez	X	
Moraga		X
Oakley		X
Orinda		X
Pinole	X	

Pittsburg	X	
Pleasant Hill		X
Richmond		X
San Pablo	X	
San Ramon		X
Walnut Creek	X	

Financial Impacts

$116,000 was budgeted for the November 2026 General Election during the Fiscal Year 2026 and 2027 budget development process. Consolidating this measure with the November general municipal election minimizes administrative costs. Long-term, the transition eliminates future costs associated with candidate recruitment and election cycles for this specific seat.

Alternative Action

The City Council could decline to place the measure on the ballot and maintain the Treasurer as an elected position.

Attachments

Attachment 1: Proposed Resolution
Attachment 2: Duties of City Treasurer – Gov. Code Sec. 41001-41007
Attachment 3: Government Code §36508-36510 and 34856

City Council Action Recommended

Move to adopt the resolution submitting a measure to the voters of Walnut Creek for the November 3, 2026 general municipal election to determine whether the position of City Treasurer should be changed from elected to appointive; requesting that the Contra Costa County Board of Supervisors consent to the consolidation of this election with the statewide general election to be held on the same date; directing the City Attorney to prepare an impartial analysis; and authorizing Mayor Kevin Wilk and Mayor Pro Tem Matt Francois to submit a written argument in favor of the proposed measure, as well as a rebuttal argument on behalf of the City Council, if so needed.

Staff Contact

Dan Buckshi, City Manager
925-943-5812
buckshi@walnutcreekca.gov